Master Services Agreement

This Master Services Agreement (the "**Agreement**") is made with effect from January 19, 2024 (the "**Effective Date**") between:

(1) **Seabright Hotels & Resorts Inc**, a hotel group that owns and operates six hotels (the "**Customer**"); and

(2) **Lumen Energy Supply Inc** (the "**Supplier**").

The Customer and the Supplier are each a "**Party**" and together the "**Parties**".

1. Definitions and Interpretation

1.1 In this Agreement:

"**Order Form**" means the order form set out in Schedule 1, which records the key commercial terms of this Agreement.

"**Properties**" means the six hotels owned and operated by the Customer and listed in Schedule 2, and "**Property**" means any one of them.

"**Services**" means the supply of electricity and gas to the Properties and the related services described in Schedule 2.

"**Fees**" means the fees set out in the Order Form.

"**Initial Term**" has the meaning given in clause 2.1.

"**Confidential Information**" means all information of a confidential nature disclosed by or on behalf of one Party to the other in connection with this Agreement, including the terms of this Agreement, pricing and information about the Properties' operations.

1.2 The Schedules form part of this Agreement. If there is a conflict, the Order Form prevails over the master terms in respect of the commercial terms it records, and otherwise the master terms prevail over the other Schedules.

1.3 Headings do not affect interpretation. References to "including" mean including without limitation.

2. Term

2.1 This Agreement commences on the Effective Date and, unless terminated earlier in accordance with its terms, continues until January 19, 2027 (the "**Initial Term**"), being a period of thirty-six (36) months, as recorded in the Order Form.

2.2 This Agreement does not renew automatically. Any extension of the term must be agreed in writing and signed by both Parties.

3. The Services

3.1 The Supplier shall supply electricity and gas to all six Properties at a fixed unit price for the whole term, at the unit prices recorded in the Order Form.

3.2 The Supplier shall perform the Services with reasonable skill and care, in accordance with good industry practice, applicable law and the service levels in the Order Form.

3.3 The fixed price ends on expiry of the Initial Term. The Customer must arrange a new supply for the Properties before then, and the Supplier has no obligation to supply the Properties at the fixed price after expiry.

3.4 The Customer shall give the Supplier such access to the Properties, meter information and cooperation as the Supplier reasonably requires to perform the Services, and shall act through its authorized representatives at each Property.

3.5 Services are delivered at the individual Properties, but the Customer is the contracting Party and is responsible for the payment of the Fees and for the Properties' compliance with this Agreement.

4. Fees, Invoicing and Payment

4.1 The Customer shall pay the Fees set out in the Order Form. The annual Fees are USD 2,100,000 and the total contract value over the Initial Term is USD 6,300,000.

4.2 The Supplier shall issue valid invoices in accordance with the Order Form. A valid invoice must identify the Property or Properties concerned, the Services supplied and the amount due.

4.3 The Customer shall pay undisputed invoices within twenty-one (21) days of receipt of a valid invoice.

4.4 If the Customer disputes an invoice in good faith, it shall notify the Supplier promptly, pay the undisputed part by the due date, and the Parties shall seek to resolve the dispute promptly. Late payment of undisputed sums carries interest at the rate provided by applicable law for late payment of commercial debts.

4.5 Amounts stated are exclusive of any applicable sales taxes or sales tax, which shall be payable in addition on receipt of a valid tax invoice.

5. Confidentiality

5.1 Each Party shall keep the other's Confidential Information confidential, use it only to perform or receive the benefit of this Agreement, and not disclose it except to its employees, officers, professional advisers and permitted subcontractors who need to know it and are bound by equivalent obligations.

5.2 Clause 5.1 does not apply to information that is or becomes public other than through breach, was lawfully known to the recipient beforehand, is independently developed, or must be disclosed by law, regulation or a competent authority (in which case the recipient shall, where lawful, give prior notice to the other Party).

5.3 The obligations in this clause 5 survive for one (1) year after this Agreement ends.

6. Intellectual Property

6.1 Each Party retains ownership of its pre-existing intellectual property rights. Nothing in this Agreement transfers ownership of any intellectual property right from one Party to the other.

6.2 The Customer grants the Supplier a non-exclusive, non-transferable license during the term to use Customer materials solely to perform the Services. The Supplier grants the Customer a non-exclusive license during the term to use any reports or documents delivered under this Agreement for its internal business purposes.

7. Data Protection

7.1 The Parties acknowledge that the Services do not involve the processing of personal data on behalf of the Customer.

7.2 If either Party's business contact details are exchanged for the purposes of administering this Agreement, each Party processes them as an independent controller in accordance with applicable data protection law. If the Parties later agree to Services that involve processing personal data, they shall first agree appropriate data protection terms in writing.

8. Warranties

8.1 Each Party warrants that it has full power and authority to enter into and perform this Agreement.

8.2 The Supplier warrants that the Services will be performed in accordance with clause 3.2. No express warranty period applies; the warranty in this clause is a services warranty only.

8.3 Except as expressly set out in this Agreement, all warranties and conditions implied by law are excluded to the fullest extent permitted by law.

9. Indemnity

9.1 Each Party (the "**Indemnifying Party**") shall indemnify the other against losses, damages and reasonable costs arising from third-party claims for death, personal injury or damage to tangible property to the extent caused by the negligence or breach of this Agreement of the Indemnifying Party.

9.2 The indemnified Party shall promptly notify the Indemnifying Party of the claim, allow it to control the defense and settlement, and give reasonable assistance at the Indemnifying Party's cost. No settlement requiring admission of liability by the indemnified Party may be made without its consent, not to be unreasonably withheld.

10. Limitation of Liability

10.1 Nothing in this Agreement limits or excludes liability for death or personal injury caused by negligence, fraud or fraudulent misrepresentation, or any other liability that cannot be limited or excluded by law.

10.2 Subject to clause 10.1, each Party's aggregate liability arising under or in connection with this Agreement, whether in contract, tort (including negligence), breach of statutory duty or otherwise, is limited to one (1) times the Fees paid or payable in the twelve (12) months preceding the claim.

10.3 Subject to clause 10.1, neither Party is liable for loss of profit, loss of goodwill or any indirect or consequential loss. The Customer's obligation to pay properly due Fees is not subject to clause 10.3.

11. Termination

11.1 Neither Party may terminate this Agreement for convenience. This Agreement may be terminated only for cause in accordance with this clause 11.

11.2 Either Party may terminate this Agreement by written notice with immediate effect if the other Party:

(a) commits a material breach that is incapable of remedy, or that is capable of remedy and is not remedied within thirty (30) days of written notice requiring remedy; or

(b) becomes insolvent, enters administration, liquidation or any arrangement with its creditors, or ceases to carry on business.

11.3 On expiry or termination, the Customer shall pay all undisputed Fees for Services supplied up to the date of termination or expiry. Termination or expiry does not affect accrued rights and clauses 5, 10, 12 and 13 and any other provision intended to survive remain in force.

12. Governing Law and Disputes

12.1 This Agreement and any non-contractual obligations arising from it are governed by the laws of the State of New York.

12.2 The Parties shall first attempt to resolve any dispute through good-faith discussion between senior representatives. If it is not resolved, the state and federal courts located in New York County, New York have exclusive jurisdiction.

13. General

13.1 **Assignment.** Neither Party may assign, transfer or subcontract any of its rights or obligations under this Agreement without the other's prior written consent, not to be unreasonably withheld.

13.2 **Notices.** Notices must be in writing and delivered by hand, by recorded delivery or by email to the address of the receiving Party stated in the Order Form (or as later notified), and are deemed received on delivery or, for email, at the time of transmission if sent on a business day.

13.3 **Force majeure.** Neither Party is liable for delay or failure to perform (other than payment obligations) caused by events beyond its reasonable control, provided it notifies the other promptly and uses reasonable efforts to mitigate.

13.4 **Entire agreement.** This Agreement, including its Schedules, is the entire agreement between the Parties on its subject matter and supersedes all prior discussions and understandings. Each Party acknowledges it has not relied on any statement not set out in it.

13.5 **Variation and waiver.** No variation is effective unless in writing and signed by both Parties. No failure or delay in exercising a right is a waiver of it.

13.6 **Severance.** If any provision is held invalid or unenforceable, the remainder continues in force.

13.7 **Third party rights.** No person other than the Parties has any right to enforce this Agreement under the Contracts (Rights of Third Parties) Act 1999.

13.8 **Counterparts.** This Agreement may be executed in counterparts, each of which is an original.

Schedule 1 – Order Form

Item	Term
Customer	Seabright Hotels & Resorts Inc
Supplier	Lumen Energy Supply Inc
Effective Date	January 19, 2024
Initial Term	Until January 19, 2027 (36 months)
Renewal	No automatic renewal; extension only by written agreement
Annual Fees	USD 2,100,000
Total contract value	USD 6,300,000
Pricing basis	Fixed unit price for electricity and gas at all six Properties for the whole term; unit prices as agreed in writing between the Parties and attached to this Order Form
Invoicing	Periodic invoices issued by the Supplier in arrears, per Property
Payment terms	Undisputed invoices payable within 21 days of receipt of a valid invoice
Liability cap	One (1) times the Fees paid or payable in the twelve (12) months preceding the claim
Termination for convenience	Not permitted for either Party; termination for cause only
Governing law	Laws of the State of New York
Personal data	Not processed under the Services
Notices	To the registered office of each Party, or the email address each Party notifies in writing

Service levels

The Supplier shall maintain continuity of supply to each Property and shall respond to supply faults and metering queries promptly, in accordance with good industry practice and the applicable network and regulatory requirements.

Schedule 2 – Services and Properties

Part A – Services

1. Supply of electricity and gas to each Property at the fixed unit price for the whole term.
2. Billing per Property, with consumption statements supporting each invoice.
3. A named account contact for the Customer for supply, billing and metering queries.

Part B – Properties

The six Properties are the hotels owned and operated by the Customer, as identified by name and address in a list agreed in writing by the Parties and attached to this Schedule on or before the Effective Date.

Execution

Signed for and on behalf of **Seabright Hotels & Resorts Inc** by Helena Cruz, VP Technology Sourcing, on January 9, 2024.

Signature: _____

Signed for and on behalf of **Lumen Energy Supply Inc** by Anika Rao, Authorized Signatory, on January 12, 2024.

Signature: _____